

## CONTROLLED UNCLASSIFIED INFORMATION

### Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☐ Yes ☒ No

Contracting Activity: 502d Contracting Squadron

Purchase Request / Local ID Number: W91FGC0012284219

Program Name (and Program Element, if applicable): IMCOM HQ Wireless Devices Equipment and Services

Estimated Cost/Price of the Order (including options): [REDACTED]

Type Program (see DAFFARS 5302.101 for definitions): ☐ PEO Program ☒ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires: [ click and select ]

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☒ (A) ☐ (B) ☐ (C) ☐ (D) ☐ (E) ☐ (F) ☐ (G) Check this box to display the FAR 6.302 exceptions.

[Click here for instructions to complete the boxes below.](#)

#### (1) Contracting Activity:

502d Contracting Squadron, 395 B Street West, Building 224, JBSA - Randolph TX 78150-4525.

#### (2) Nature and/or description of the action being approved:

The scope is to provide wireless services only to the 162 mobile devices and 324 cell phones to HQ Installation Command (IMCOM), Army Environmental Command (AEC) and any other sub-commands located on Joint Base San Antonio. The service also includes services for existing IPAD devices. The combination of equipment total 486. This is a bridge action for 3 months service only with a period of performance (POP) starting on 01 May 2025 through 31 July 2025.

#### (3) Description of the supplies/services required to meet the agency's needs:

The Contractor/Vendor shall provide quality professional level wireless, cellular, data, smartphone devices, and services that meet the basic government requirements. Contractor shall provide cellular devices and services to HQ IMCOM and Army Environmental Command (AEC) located at Joint Base San Antonio, Texas. Contractor shall provide service only service, necessary to keep the mission operational until the new multi-year contract can be in place. This is a 3 months service with a period of performance (POP) of starting 01 May 2025 to 31 July 2025. Network coverage shall guarantee the areas of Fort Sam Houston to include inside of all HQ IMCOM Buildings (bldg.); 2261, 2264, 2266, 2070 and 4022, Camp Bullis, Camp Stanley, and surrounding San Antonio Area and all 50 U.S. States

#### (4) Identification of the exception to fair opportunity and the supporting rationale:

The existing IDIQ contract [REDACTED] - Navy Spiral III) expired on May 7, 2024. While task order [REDACTED] extends to April 30, 2025, it is invalid as it falls outside the IDIQ's period of performance. Although the new Spiral IV [REDACTED] contract for cell phone and wireless devices is now available, a critical three-month gap in service necessitates immediate action. This gap requires a bridge task order awarded against the new Spiral IV [REDACTED] to maintain essential communication capabilities. This three-month task order will also facilitate system upgrades for improved signal quality and infrastructure, paving the way for a seamless transition to the forthcoming multi-year contract.

**Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction**

On April 8, 2025, [REDACTED] quoted \$ [REDACTED] for these services, a cost comparable to the current task order. To prevent a mission-impacting service disruption, a sole-source task order is required under the exception to fair opportunity cited in FAR 16.505(a)(4)(iii). This urgent action is essential to maintain uninterrupted communication capabilities.

(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

Prices have been negotiated on the IDIQ [REDACTED]

(6) Other facts supporting the justification:

Mission-critical communications for Installation Management Command (IMCOM) Headquarters are at imminent risk. Our current analog system is insufficient and, without immediate modernization, a complete communication failure within the next three months is likely. This failure will severely impact the Commanding General, staff, division chiefs, and personnel at IMCOM HQ, jeopardizing their ability to execute mission-essential functions across Fort Sam Houston (Buildings 2261, 2264, 2266, 2070, and 4022), Camp Bullis, Camp Stanley, the surrounding San Antonio area, and globally. This outage will cripple our guaranteed network coverage, impacting military personnel, civilians, and customers worldwide.

A proven digital communication system, successfully deployed by another carrier during the COVID pandemic, is available to prevent this catastrophic failure. Awarding a three-month bridge task order under the existing Navy IDIQ contract is crucial to maintain uninterrupted service while the new multi-year contract undergoes proper sourcing. This sole-source justification is based on FAR 16.505(a)(4)(iii) to avoid a critical service interruption with severe operational consequences. Delaying this award will directly compromise IMCOM HQ's ability to perform its mission.

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

The Navy Spiral IV IDIQ [REDACTED] is a designated government-wide strategic sourcing solution for mobile services, mandated by the Office of Management and Budget (OMB). All federal agencies are directed to utilize Spiral IV for procuring carrier services, devices, and other related mobile requirements. Furthermore, it serves as a mandatory source of supply for all Department of Defense (DOD) agencies.

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

(10) Approving Official's determination that one of the circumstances in [FAR 16.505\(b\)\(2\)\(i\)](#) applies to the order.

As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

**Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction**

---

|                     |                                                    |                         |
|---------------------|----------------------------------------------------|-------------------------|
| Date<br>14 Apr 2025 | Program Manager<br>[REDACTED]                      | Signature<br>[REDACTED] |
| Date<br>15 Apr 2025 | Contracting Officer<br>[REDACTED]                  | Signature<br>[REDACTED] |
| Date<br>14 Apr 2025 | Flight Chief and Contracting Officer<br>[REDACTED] | Signature<br>[REDACTED] |

**Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction**

---

**Instructions for Completing the Template IAW FAR 16.505(b)(2)(ii)(B)**

- (2) State whether the action is a new order or a modification to an existing order. Identify the basic multiple award contract number and the order number for the current action. Also identify the type of the order/line items on the order (e.g., Firm Fixed price, Cost Plus Fixed Fee, etc.).
- (3) Specifically describe the supplies/services to be acquired including the price/cost and quantity of each item in the order and the total estimated value of the order. For services, state whether services are performance-based, and if not, provide rationale for not being performance based. State the delivery/performance schedule/period for the items under the order. Explain how the requirement/order fits under the scope of the basic multiple award contracts. (Note: The Contracting Officer must ensure that the order is issued within the period of performance and within the maximum value of the contract).
- (4) Include the appropriate exception from FAR 16.505 (b)(2) and the supporting rationale. FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract, a fair opportunity to be considered for each order exceeding \$3,000 unless a statutory exception applies. The specific exception that precludes the fair opportunity process for this acquisition is FAR 16.505(b)(2)(i)(    ) [Insert A, B, C, D, or E]. If a brand name product description is being justified, use this section to explain why the particular brand name, product, or feature is essential to the Government's requirements and why other companies' similar products/services do not meet, or cannot be modified to meet, the agency's needs.

**FAR 16.505(b)(2)(i)(A):** "The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays". When using this exception provide a detailed justification with supporting documentation that explains the exact urgency of the requirement and the mission impact if awarded to any other contractor. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements of urgency are not acceptable.

**FAR 16.505(b)(2)(i)(B):** "Only one awardee is capable of providing the supplies or services required at the level at the level of quality required because the supplies or services ordered are unique or highly specialized". When using this exception provide a detailed justification, with supporting documentation, as evidence of the "unique or highly specialized" nature of the procurement. The user/customer typically provides this supporting information. Supporting documentation may be attached to the back of the document. General statements are not acceptable.

**FAR 16.505(b)(2)(i)(C):** "The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order". When using this exception provide information on the previously competed order under this contract and detail the economies and efficiencies that will be obtained by going sole source for the follow-on order. The user/customer typically provides this supporting information. General statements are not acceptable.

**FAR 16.505(b)(2)(i)(D):** "It is necessary to place an order to satisfy a minimum guarantee."

**FAR 16.505(b)(2)(i)(E):** "For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source."

Discuss the market research that was conducted by the user/technical team/contracting officer among the supplies/services of all awardees that resulted in the conclusion that a fair opportunity exception applied. The narrative in this section should provide a high level of confidence that the requirements of FAR 16.505(b)(1) and DFARS 216.505-70 could not be met. If no market research was conducted, state so and provide the rationale. If any other awardee expressed interest in fulfilling the requirement, but was not considered a potential source, explain why that awardee cannot provide the required supplies/perform the service.

**Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction**

---

If the use of a brand name purchase description is being justified, the market research should include an analysis of any industry proposed alternative products or approaches to meeting the requirements. Additionally, the Government's efforts to identify as many potential sources as practicable offering the required brand name item(s) should be addressed.

(5) This paragraph needs to be tailored based on the types of CLINs in the order and the pricing arrangements on the basic multiple award contract. If the contract did not establish the price for the supply or service, the Contracting Officer must establish prices for each order IAW [FAR 15.4](#). The paragraph needs to describe the steps that will ensure that the prices/estimated cost of the order will be fair and reasonable. For example, even if firm-fixed prices were obtained under adequate price competition in the award of the multiple award contract, the Contracting Officer still needs to consider market conditions and other factors that may have changed since contract award and explain the basis in the determination that prices/costs are fair and reasonable prior to award of the order.

(6) Provide any other facts supporting the use of exceptions to the fair opportunity process.

(7) Include a statement of the actions, if any, to be taken to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made. If no actions are planned, so state and provide reasons.